

Canadian Committee on Corrections, *Towards Unity: Criminal Justice and Corrections* (Ouimet Report) (March 31, 1969)

Ch. 2, “Basic Principles and Purposes of Criminal Justice” (Excerpts)

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The Committee accepts the following propositions as indicating the proper scope and function of the criminal and correctional processes.

1. The basic purpose of criminal justice is to protect all members of society, including the offender himself, from seriously harmful and dangerous conduct.

The Committee regards the protection of society not merely as the basic purpose but as the only justifiable purpose of the criminal process in contemporary Canada.

The inclusion of the offender as a member of society entitled to full protection is important. This principle prevents the application of correctional measures against convicted persons too harshly or for too long.

2. The basic purposes of the criminal law should be carried out with no more interference with the freedom of individuals than is necessary.

Society should receive the maximum protection from criminals that is consistent with the freedom of those to be protected, at the same time inflicting no more harm on the offender than is necessary.

To accomplish this, the number of laws must be limited to what is essential, since too many laws invite public rejection and increase the scope of state interference while reducing its effectiveness. Police and court procedures must ensure that the process of enforcement will be carried on effectively but with a minimum of interference with the individual. The suffering caused by the sanctions of the criminal law must also be limited. Unduly harsh sanctions not only create a sense of injustice and impair the treatment potential of correctional measures, but also reduce the impact of law in general. There is also the risk that an increase in the severity of sanctions contributes to an escalation of the war between crime and its control.

As Professor Fitzgerald has put it:

The aim of crime prevention in a free society is part of the larger aim of producing a society in which the citizen can fulfill himself in the pursuit of his individual happiness, free from want, disease, and external interference. The pursuit of this aim naturally entails some measure of state interference with individual liberty. But unless a society is

careful to keep a check on the measure of interference, it may end by losing more in the way of liberty than it gains in freedom from want, disease, and crime.¹

3. *Recognition of the innocent must be assured by proper protection at all stages of the criminal process.*

This is taken to be self-evident.

4. *No conduct should be defined as criminal unless it represents a serious threat to society, and unless the act cannot be dealt with through other social or legal means.*

The Committee has not been asked to direct its mind to the question whether specific acts should be designated as crimes. However, there can be no criminals and no one liable to correction under our system unless there be pre-existing legislation, designating such conduct as criminal and imposing upon the actor a liability to legal correction. It would appear to the Committee that there are some matters which are at the moment designated as crimes and yet which are in general agreement not appropriate to be dealt with by the criminal law. To apply the criminal process to such matters is to impose an intolerable burden upon the whole process of correction.

The Committee adopts the following criteria as properly indicating the scope of criminal law:

1. No act should be criminally proscribed unless its incidence, actual or potential, is *substantially damaging to society*.

2. No act should be criminally prohibited where its incidence may adequately be controlled by social forces other than the criminal process. Public opinion may be enough to curtail certain kinds of behaviour. Other kinds of behaviour may be more appropriately dealt with by non-criminal legal processes, e.g. by legislation relating to mental health or social and economic condition.

3. No law should give rise to social or personal damage greater than that it was designated to prevent.

To designate certain conduct as criminal in an attempt to control anti-social behaviour should be a last step. Criminal law traditionally, and perhaps inherently, has involved the imposition of a sanction. This sanction, whether in the form of arrest, summons, trial, conviction, punishment, or publicity is, in the view of the Committee, to be employed only as an unavoidable necessity. Men and women may have their lives, public and private, destroyed; families may be broken up; the state may be put to considerable expense: all these consequences are to be taken into account when determining whether a particular kind of conduct is so obnoxious to social values that it is to be included in the catalogue of crimes. If there is any other course open to society when threatened, then that course is to be preferred. The deliberate infliction of punishment or any

¹ Fitzgerald, P. J. *Criminal Law and Punishment*. Oxford: Clarendon Press, 1962, p. 146.

other state interference with human freedom is to be justified only where manifest evil would result from failure to intervene.

[...]

Our terms of reference do not extend to an overall examination of Canadian criminal law. It is, however, our conviction that such a comprehensive examination of the Criminal Code and related Canadian statutes and that body of “quasi-criminal” law enacted by the provinces is a matter of the greatest urgency.

[...]

7. Discretion in the application of the criminal law should be allowed at each step in the process: arrest, prosecution, conviction, sentence and corrections.

To implement the Committee’s proposition that the criminal law should be enforced with a minimum of harm to the offender, discretion should be exercised in cases involving individuals who are technically guilty of an offence but where no useful purpose would be served by the laying of a charge. Where a charge is laid, discretion should be exercised as to the manner in which the law is applied.

This means the police should have appropriate discretion whether to lay a charge and, if a charge is laid, whether to release the accused or hold him in custody. The prosecution should have appropriate discretion to determine whether a charge is to be laid or proceeded with, and whether conviction on a lesser charge would satisfy the requirements of justice. The court should have the power to dispose of a case without conviction and should have a wide range of alternatives open when a sentence must be imposed. The correctional services should have as much discretion as possible in planning and executing a treatment program.

Discretion should, of course, always be exercised with the protection of the community in mind.

[...]